

24STCV33430 24STCV33430

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 24STCV33430 Hearing Date: July 16, 2026 Dept: 512

HEARING DATE: Thurs., July 16, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Manson

v. FCA US, LLC, et al. COMPL.

FILED: 12-17-24

CASE NUMBER: 24STCV33430

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION; REQUEST FOR SANCTIONS

MOVING PARTY:

Plaintiff Claire Manson

RESP. PARTY: Defendant

FCA US LLC

MOTION TO

COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION; REQUEST FOR SANCTIONS

(CCP § 2031.300)

TENTATIVE RULING:

Plaintiff Motion to Compel

Defendant's Compliance with Defendant's Own Response to Plaintiff's Request for

Production of Documents, Set One, is DENIED as moot. Plaintiff's request for monetary sanctions is DENIED.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on July 2, 2026 ☐ Late ☐ None

REPLY: None filed as of July 12, 2026 ☐ Late ☒ None

ANALYSIS:

I. Background

On December 17, 2024, Plaintiff Claire Manson ("Plaintiff") filed a Complaint for Violation of Statutory Obligations against Defendants FCA US, LLC ("FCA US") and Glendale Chrysler Jeep Dodge Ram ("Glendale Chrysler") ("Defendants") and Does 1-10.

On January 22, 2025, Defendants filed Answers.

On May 19, 2026, Plaintiff filed the instant Motion to Compel Defendant's Compliance with Defendant's Own

Response to Plaintiff's Request for Production of Documents ("RPDs"), Set One (the "Motion") and request for sanctions.

On July 2, 2026, FCA US filed an Opposition.

No Reply has been filed.

II.

Legal

Standard

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (c).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

III.

Discussion

A. RPDs

Plaintiff contends that FCA US failed to timely respond to Plaintiff's RPDs on or by the statutory deadline.

In Opposition, FCA US states the

Motion is moot and should be denied on the following grounds – although “the written responses were timely served, the accompanying document production was not transmitted due to an administrative oversight... After confirming the oversight, FAC US completed and served its responsive production on July 2,

2026.” (Opp., p. 2, Fonseca Decl., ¶¶ 7-10.) FCA US submits a declaration from defense counsel in support of the Opposition’s contentions. (Opp., Fonseca Decl.)

Here, Plaintiff’s counsel served the first set of RPDs on FCA US on April 10, 2025, and FCA US served unverified responses to the RPDs on May 30, 2025, without any accompanying document production. (Motion, Rucker Decl., ¶¶ 4-5, Exhs. 1-2.)

FCA US represents in the Opposition and the accompanying declaration of defense counsel that “all responsive, verified, non-privileged documents” have been produced to Plaintiff on July 2, 2026. Thus, the Court is satisfied that FCA US has submitted the production and verified responses to the RPDs. (Opposition, Fonseca Decl.) No reply brief has been filed.

Based on the foregoing, the Motion is DENIED as moot.

B. Sanctions

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)\

Considering that FCA US has provided verified responses to Plaintiff’s RPDs, and due to an administrative oversight cited in the defense counsel’s declaration, the Court finds the imposition of sanctions would be unjust. Thus, sanctions request is DENIED.

IV.

Conclusion
& Order

For the foregoing reasons,
Plaintiff Motion to Compel Defendant’s Compliance with

Defendant's Own Response to Plaintiff's Request for Production of Documents, Set One, is DENIED as moot. Plaintiff's request for monetary sanctions is DENIED.

Moving party is ordered to give notice.